

Amendment No. 1 to HB1352

Farmer
Signature of Sponsor

AMEND Senate Bill No. 678*

House Bill No. 1352

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-504(b), is amended by deleting the subsection and substituting:

(b)

(1) Except as provided in subdivision (b)(2), aggravated sexual battery is a Class B felony.

(2) If the victim was less than eighteen (18) years of age or was mentally defective, mentally incapacitated, or physically helpless, then aggravated sexual battery is a Class B felony and, notwithstanding title 40, chapter 35, the defendant must be punished as a Range II offender; however, the sentence imposed upon the defendant may, if appropriate, be within Range III but in no case shall it be lower than Range II.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.